

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.228 of 2022

Sardar Qurban Ali Dogar **V/S** *Pakistan Bar Council and others*

<i>S.No.of order / Proceedings</i>	<i>Date of order /Proceedings</i>	<i>Order with signatures of Judge, and that of parties or counsel, where necessary.</i>
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05.01.2022	M/s Ch. Ishtiaq Ahmad Khan and Muhammad Maqsood Buttar, ASC with Rana Muhammad Asif, Ch. Imtiaz, Ch. Imran Asghar, Muhammad Nadeem Mehar, Mudassar Sher Bodla and Mehr Liaqat Ali, Advocates.
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Through the instant Constitutional petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “***Constitution***”), the Petitioner has challenged orders dated 31.12.2021 and 24.12.2021 passed by the Respondents No.1 & 3 respectively.

2. Short facts, as per petition, are that the Respondents No.7 and 8 filed separate appeals against rejection of their nomination papers before the Respondent No.3/Executive Committee, Punjab Bar Council however, the aforesaid Respondent accepted the appeal of the Respondent No.7 vide impugned order dated 24.12.2021 while appeal of the Respondent No.8 is still pending. The Petitioner filed appeal against the aforesaid order before the Respondent No.1/Pakistan Bar Council (the “***PCB***”) which was dismissed vide impugned order dated 31.12.2021. Hence this petition.

3. Learned counsel for the Petitioner Ch. Ishtiaq Ahmad, ASC *inter alia* argues that the impugned orders passed by

the Respondents are in violation of Articles 46, 47 and 64 of Memorandum of Association, 1981 (the “*Memorandum*”); that the impugned orders have been passed without adverting to Rule 175-G, 175-I and 175-K of Pakistan Legal Practitioner and Bar Council Rules, 1976 (the “*Rules*”). Ch. Ishtiaq Ahmad, ASC and Muhammad Maqsood Buttar, ASC stated that in order to strengthen the election process of the bar associations, Chapter XII-A was added under the Rules and thereafter, to further strengthen the election dates of bar associations of various provinces, Code of Conduct, nomination of the election board, preparation of list of eligible voters, right of vote were duly incorporated under the Rules through Notification of Pakistan Bar Council dated 16.11.2015 hence, the entire process made by the Respondents is in violation of Chapter XII-A as well as the Rules.

4. When confronted how this writ petition is maintainable and what is the locus-standi of the Petitioner, learned counsel states that this petition has been filed in order to strengthen the role of election board and that the impugned orders are in violation of statutory provisions of law. He referred to judgment cited as “MUHAMMAD SHOAIB SHAHEEN versus PAKISTAN BAR COUNCIL” (PLD 2017 SC 231).

5. Heard. Record perused.

6. At the outset, without touching the merits of the case the issue of maintainability is essential to be resolved by this Court. The bare examination of the prayer, made by the Petitioner, reveals that the Petitioner is aggrieved from the orders dated 31.12.2021 and 24.12.2021 which admittedly has been passed by the Respondent No.1/Pakistan Bar Council and Respondent No.3/Executive Committee, Punjab Bar Council. The

Hon'ble Supreme Court of Pakistan in “Mirza MUHAMMAD NAZAKAT BAIG Versus FEDERATION OF PAKISTAN through Secretary Ministry of Law and Justice, Islamabad and another” (2020 SCMR 631) has enunciated the principle by holding that:

“A bare reading of the provisions of the Legal Practitioners and Bar Councils Act shows that the Act provides for establishment of Bar Councils in the Provinces as well as the Islamabad Capital Territory. It deals with all matters relating to elections of office bearers, disciplinary and other professional matters, constitution of committees, their powers and other related and incidental matters. However, it is clear that other than the Attorney General for Pakistan being the ex-officio, Chairman Pakistan Bar Council and Advocates Generals of the Provinces and Islamabad Capital Territory being ex-officio, Chairman of the Provincial Bar Councils and Islamabad Capital Territory neither the Provincial nor the Federal Government exercise any administrative control over the affairs of the Pakistan Bar Council or the Provincial Bar Councils. Pakistan Bar Council is a statutory body which is autonomous and generates its own funds independently. The Government does not have any control over it. Likewise, the Islamabad Bar Council acts as a regulator for affairs of the Advocates in Islamabad Capital Territory, admits Advocates to practice before the said High Court and maintains rolls of such Advocates. The functions of the Council also inter-alia include initiating proceedings for misconduct against Advocates on its rolls and award punishment in such cases. That being so, neither the Respondent nor any of its constituents or committees can be regarded as persons performing functions in connection with the affairs of the Federation, Provinces or Local Authority within the contemplation of the Article 199 of the Constitution of Islamic Republic of Pakistan. As such we are in no manner of doubt that Respondent No.2 is not amenable to the jurisdiction of the High Court in terms of Article 199 of the Constitution”.

7. Recently, the same principle was further enunciated by the Hon'ble Supreme Court of Pakistan in “Syed IQBAL HUSSAIN SHAH GILLANI Versus PAKISTAN BAR COUNCIL through Secretary, Supreme Court Bar Building, Islamabad and others” (2021 SCMR 425) by

holding that “*neither the Bar Council nor any of its committees could be regarded as persons performing functions in connection with the affairs of the Federation, Provinces or Local Authority within the contemplation of Article 199 of the Constitution of Pakistan. Accordingly, the Pakistan Bar Council and its Committees were not amenable to constitutional jurisdiction of the High Court*”. Every judgment of the Supreme Court is binding on all Courts under Article 189 of the Constitution. The same words are used in Article 201 of the Constitution but subject to Article 189 to follow its principle for consistency therefore, the principles enunciated in aforesaid judgments are binding on this Court under Article 189 of the Constitution.

8. Since the prayer made by the Petitioner is to set aside the orders dated 31.12.2021 and 24.12.2021 which have been passed by the Pakistan Bar Council and Punjab Bar Council therefore, no interference can be made by this Court in view of principles enunciated in above referred judgments which are binding on this Court Article 189 of the Constitution. Moreover, the Respondents do not fall within the meaning of ‘persons’ as per Article 199(5) of the Constitution as held by the Hon’ble Supreme Court in above referred judgment that neither the bar councils nor any of its committee could be regarded as persons hence the Pakistan Bar Council and Punjab Bar Council are not amenable to invoke constitutional jurisdiction of this Court. Reliance is also placed on judgment of this Court passed in “AOWN ABBAS BHATTI Versus FORMAN CHRISTIAN COLLEGE through its Rector etc” (PLD 2018 Lahore 435 = PLJ 2019 Lah 165).

9. In view of the law laid down in aforesaid judgments and while applying the doctrine of “***Limine Control***” as developed by this Court in “***ASIF SALEEM Versus CHAIRMAN BOG University of Lahore and others***” (2019 PLD Lahore 407), this petition is hereby **dismissed in limine** being not maintainable.

(JAWAD HASSAN)
JUDGE

APPROVE FOR REPORTING

JUDGE

Usman*